

24CHCV04821 24CHCV04821

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Case Number: 24CHCV04821 Hearing Date: July 6, 2026 Dept: F49

Dept. F49

Date: 7/6/26

Case Name: Gor Muradyan v. General Motors LLC, and Does
1-100

Case No. 24CHCV04821

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 6, 2026

MOTION FOR SUMMARY

JUDGMENT, OR ALTERNATIVELY, FOR SUMMARY ADJUDICATION

Los Angeles Superior

Court Case No. 24CHCV04821

Motion filed: 10/23/25

MOVING PARTY: Defendant General Motors LLC

RESPONDING PARTY: Plaintiff Gor Muradyan

NOTICE: OK

RELIEF REQUESTED: An order from this Court granting Defendant's motion for summary judgment, or in the alternative, summary adjudication on all causes of action of the Complaint.

TENTATIVE RULING: The Motion is CONTINUED.

BACKGROUND

This action arises from the alleged failure of Defendant General Motors LLC ("Defendant") to conform a 2021 GMC Yukon XL (the "Subject Vehicle") purchased by Plaintiff Gor Muradyan ("Plaintiff") to warranty specifications.

On December 31, 2024, Plaintiff filed the Complaint against Defendant and Does 1 through 100, alleging breach of express and implied warranties pursuant to the Song-Beverly Consumer Warranty Act and breach of express and implied warranties pursuant to the Magnuson-Moss Warranty Act.

On March 24, 2025, Defendant filed its Answer.

On October 23, 2025, Defendant filed the instant Motion for Summary Judgment, or Alternatively, for Summary Adjudication (the "Motion"). On January 29, 2026, Plaintiff filed an opposition. On February 6, 2026, Defendant filed a reply. On June 23, 2026, Plaintiff filed a supplemental brief regarding developments in discovery. On June 25, 2026, Defendant filed a supplemental reply.

ANALYSIS

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c(a)(1).)

"The

motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c).)¿

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party may alternatively seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. (Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication ... shall proceed in all procedural respects as a motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).)

The

moving party “bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) To meet that burden, the moving party must present evidence sufficient to show they are entitled to summary judgment as a matter of law. (Code Civ. Proc., § 437c, subds. (c) & (f)(2); Monticello Ins. Co. v. Essex Ins. Co. (2008) 162 Cal.App.4th 1376, 1385.)

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moving defendant “bears the burden of showing the court that the plaintiff ‘has not established, and cannot reasonably expect to establish,’ the elements of his or her cause of action.” (State v. Allstate Insurance Co. (2009) 45 Cal.4th 1008, 1017, internal quotations omitted.)

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pleadings serve as the “outer measure of materiality” in a summary judgment motion, delimiting the scope of the issues that may be triable. (FPI Development, Inc. v. Nakashima (1991), 231 Cal.App.3d 367, 381.) A moving defendant accordingly need only negate the theories of liability alleged in the complaint. (Nativi v. Deutsche Bank National Trust Co. (2014) 223

Cal.App.4th 261, 290.)

A.

Preliminary Considerations – Request for Continuance

As a preliminary matter, Plaintiff

asserts that the Motion should be denied as procedurally improper or continued because it was prematurely brought while discovery was incomplete. (Opp'n, at pp. 3-4.)

Pursuant to Code of Civil Procedure

section 437c, subdivision (h), the court must deny or continue a motion for summary judgment to permit further discovery “[i]f it appears from the affidavits submitted in opposition ... that facts essential to justify opposition may exist but cannot, for reasons stated, be presented.”

“The decision to grant or deny a

continuance request under section 437c, subdivision (h), is vested in the trial court's discretion.” (Braganza v. Albertson's LLC (2021) 67 Cal.App.5th 144, 152.) Such requests are to be liberally granted. (Ibid.) “[C]ontinuances under section 437c, subdivision (h), are virtually mandated upon a good faith showing by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion. [Citations.]” (Ibid., internal quotations omitted.) An affidavit under section 437c, subdivision (h) must show that “(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain [or discover] these facts. [Citations.]” (Ibid., internal quotations omitted.) “A good faith showing that further discovery is needed to oppose summary judgment requires some justification for why such discovery could not have been completed sooner.” (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 257.) Lack of diligence may be a factor justifying refusal to grant a continuance under section 437c, subdivision (h). (Ibid.)

Plaintiff's counsel attests that the

discovery ordered by the Court on January 22, 2026 bears directly on Defendant's knowledge of recurrent defects in the Subject Vehicle, “whether the subject vehicle was repaired within a reasonable number of opportunities, and whether defects were improperly characterized as maintenance or recall-only issues. (Markarian Decl., ¶ 24.) On January 22, 2026, the Court ordered Defendant to serve supplemental responses to Plaintiff's requests for

production of documents. (Minute Order, Jan. 22, 2026, at p. 8.) Among the documents sought by those requests were those related to Defendant's inspection and repair of the Subject Vehicle and notice of any defects. (Id., at pp. 6-7.) While Defendant served supplemental responses, the Court, in granting Plaintiff's motion to enforce its January 22, 2026 Order, found the supplemental responses to be deficient. (Minute Order, May 22, 2026, at pp. 3-6.) Plaintiff's counsel states that, despite the Court's order, the same deficiencies remain in Defendant's further supplemental responses. (Markarian Suppl. Decl., ¶¶ 12-13, Exh. "G.") The Court notes that there is a pending motion to compel further responses to these same requests for production that were the subject of the Court's January 22, 2026 Order. The motion is scheduled for hearing on December 15, 2026.

Plaintiff's counsel also attests that he has been unable to complete a deposition of Defendant's person most knowledgeable ("PMK"), whose deposition the Court compelled on March 20, 2026. (Markarian Suppl. Decl., ¶¶ 5-9; Minute Order, Mar. 20, 2026, at pp. 6-7.) Plaintiff's counsel indicates that the deposition of Defendant's PMK was suspended after Defendant's counsel repeatedly instructed the witness not to answer questions regarding Defendant's evaluation of the Subject Vehicle for repurchase. (Markarian Suppl. Decl., ¶ 9.) The Court notes that there is also a pending motion to compel the testimony of Defendant's PMK.

In reply, Defendant argues that Plaintiff's request for a denial or continuance based on the inability to depose Defendant's PMK is meritless because Defendant waited nearly a year after filing the Complaint to notice the PMK deposition, failing to demonstrate diligence in seeking the deposition. (Reply, at p. 7.) As to the PMK deposition, the Court agrees that Plaintiff's supporting declaration does not adequately establish why it could not be completed sooner.

The Discovery Act permits a plaintiff to serve a deposition notice on the defendant without leave of court on any date at least 20 days after the defendant's appearance or service of the summons. (Code Civ. Proc., § 2025.210.) This action was filed on December 31, 2024. While it is unclear when the Summons and Complaint were served, Defendant answered the Complaint on March 24, 2025. Plaintiff could accordingly have served a notice of deposition as early as April 2025, and Plaintiff's counsel does not explain why Plaintiff did not seek to depose Defendant's PMK before December 29, 2025, when he initiated meet and confer regarding deposition

scheduling. (See Markarian Decl., ¶ 17.) Given that Plaintiff served other discovery in May 2025, the failure to explain the delay in seeking to depose Defendant is notable. Failure to complete the PMK deposition is thus not an adequate ground to deny or continue the Motion.

As to document production, however, Plaintiff shows that he diligently sought production of documents concerning the Subject Vehicle's repair history and Defendant's knowledge of defects with the Subject Vehicle. Plaintiff's counsel attests that Plaintiff served his Request for Production of Documents (Set One) on Defendant on May 25, 2025, shortly after Defendant answered the Complaint. (Markarian Decl., ¶ 3.) Defendant served responses on July 22, 2025, and Plaintiff promptly brought a motion to compel further responses on August 29, 2025. (Id., ¶ 6.) Defendant does not dispute Plaintiff's diligence in seeking document production.

The Court agrees with Plaintiff that documents concerning the Subject Vehicle's repair history and Defendant's notice and characterization of any defects with the Subject Vehicle are relevant to establishing whether a reasonable number of repair attempts were made. Given that the basis of the Motion is that Plaintiff cannot establish that a sufficient number of repair attempts were made, (Mot., at p. 6), such evidence would be essential to opposing the Motion. Although Defendant argues that no additional evidence exists, the standard under section 437c, subdivision (h) is not whether facts actually exist, but whether there is reason to believe they may exist. The Court finds that Plaintiff's demonstration of conduct preventing him from obtaining complete discovery responses is a sufficient basis to believe additional evidence may exist.

Based on the foregoing, the Court
CONTINUES the Motion.

CONCLUSION

The Court CONTINUES Defendant General Motors's motion for summary judgment.

Moving party to give notice.